

Ascertainable damages must be measurable by the contract or by reference to the contract itself and the basis for computing damages must be reasonable and certain. (*CIT Group/Equipment Financing, Inc. v. Super DVD, Inc.* (2004) 115 Cal.App.4th 537, 541.) “A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Proc., § 481.190.) At a noticed hearing, the court shall issue a RTOA if it finds all of the following: (1) an attachable claim, (2) probable validity of the claim, (3) proper purpose, and (4) the amount to be secured by attachment is greater than zero. (Code Civ. Proc., § 484.090, subd. (a)(1–(4).) The amount plaintiff seeks to attach appears to be based not on the disgorgement damages but primarily on the cost of repair or replacement. As the cost of repair or replacement is not based on an agreement between the parties but rather between plaintiff and a third-party, this is not an ascertainable amount.

Based on the foregoing, the application is denied.

12. S-CV-0056415 James E Williams & Son v. Moreland, Christopher G

Order to Show Cause re Preliminary Injunction

In light of plaintiff’s request to remove this hearing from calendar (filed May 29, 2026) and defendant JP Morgan Chase Bank’s similar filing (filed June 1, 2026), the court drops the order to show cause hearing from calendar. No preliminary injunction shall issue and the temporary restraining order issued by this court on May 1, 2026 is hereby dissolved.

13. S-CV-0056665 Gardner, Cheryl Fornear v. Hyundai Motor America

The moving party is advised the notice of a motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendant’s Motion to Compel Arbitration and Motion to Stay

Defendant’s request for judicial notice is granted.

Plaintiff’s objection No. 1 as to Rao Decl. ¶ 5 is sustained as to the reference to plaintiff. Plaintiff’s objection No. 2 as to Rao Decl. ¶ 6 is sustained as to references to plaintiff in lines 14-22 and overruled as to lines 23-26.

Procedural History

On December 3, 2025, plaintiff filed a complaint regarding the purchase of a 2020 Hyundai Sonata with three causes of action against defendant Hyundai Motor America, for breach of express warranty; breach of implied warranty; and violation of the Song Beverly consumer warranty act. On January 23, 2026, defendant moved to compel arbitration alleging the warranty and Hyundai’s Bluelink services included a binding arbitration provision. Plaintiff opposes this motion.

Legal Standard

Section 2 of the Federal Arbitration Act (“FAA”) makes agreements to arbitrate “valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (9 U.S.C. § 2.) This provision reflects both a “liberal federal policy favoring arbitration” and the “fundamental principle that arbitration is a matter of contract.” (*AT&T Mobility LLC v. Concepcion*, (2011) 563 U.S. 333, 339.) California law mandates that the court must grant a petition to compel arbitration “unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement.” (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219.) “Any doubts concerning the scope of arbitrable issues should be resolved in favor of arbitration, whether the problem at hand is the construction of the contract language itself or an allegation of waiver, delay, or a like defense to arbitrability.” (*Three Valleys Mun. Water Dist. v. E. F. Hutton & Co.*, (9th Cir. 1991) 925 F.2d 1136, 1139.)

Warranty

On or about December 12, 2019, plaintiff purchased the subject vehicle. Accompanying the purchase of the vehicle to plaintiff was the warranty, which included an agreement to arbitrate.

On pages 13-14 of plaintiff’s warranty is a section titled “**BINDING ARBITRATION FOR CALIFORNIA VEHICLES ONLY**”. (Warranty, Exhibit 3, Ameripour Decl., pages 15-16.) The binding arbitration provision of the Warranty provides:

PLEASE READ THIS SECTION IN ITS ENTIRETY AS IT AFFECTS YOUR RIGHTS

If you purchased or leased your Hyundai vehicle in the State of California, you and we each agree that any claim or disputes between us (including between you and any of our affiliated companies) related to or arising out of your vehicle purchase, use of your vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty, including without limitation claims related to the failure to conform a vehicle to warranty, failure to repurchase or replace your vehicle, or claims for a refund or partial refund of your vehicle's purchase price (excluding personal injury claims), shall be resolved by binding arbitration at either your or our election, even if the claim is initially filed in a court of law. If either you or we elect to resolve our dispute via arbitration (as opposed to in a court of law), such binding arbitration shall be administered by and through JAMS Mediation, Arbitration and ADR Services (JAMS) under its Streamlined Arbitration Rules & Procedures.

We will pay all JAMS fees for any arbitration except for the initial filing fee of \$250. The arbitration will be held in the city or county of your residence. To learn more about arbitration, including how to commence arbitration, you may call any JAMS office or go to www.jamsadr.org.

This agreement to arbitrate is intended to be broadly interpreted and to make all disputes and claims between us (including our affiliated companies) relating to or arising out of your vehicle purchase, use of your vehicle, or the vehicle warranty subject to arbitration to the maximum extent permitted by law.

In any arbitration, the arbitrator shall be bound by the terms of this agreement and shall follow the applicable law. The arbitrator shall not have the power to commit manifest errors of law, and any award rendered by the arbitrator that employs a manifest error of law may be vacated or corrected by a court of competent jurisdiction for such error. The arbitrator may only resolve disputes between you and us and may not consolidate claims without the consent of all parties. The arbitrator cannot hear class or representative claims or requests for relief on behalf of others purchasing or leasing Hyundai Motor America vehicles as permitted by law. In other words, you and we may bring claims against the other only in your or our individual capacity, and not as a Plaintiff or class member in any class or representative action to the maximum extent permitted by law. If a court or arbitrator decides that any part of this agreement to arbitrate cannot be enforced as to a particular claim for relief, then that claim (and only that claim) must be brought in court and must be stayed pending arbitration of the arbitrable claims. If arbitration is elected by either party, the parties collectively agree that they waive their right to a jury trial. In no events shall class arbitration be permitted.

Notwithstanding the above, you may file a lawsuit in small claims court for any claims that otherwise require binding arbitration. This agreement evidences a transaction involving interstate commerce and shall be governed by the Federal Arbitration Act, 9 U.S.C. §§ 1-16. Judgment upon any award in arbitration may be entered in any court having jurisdiction.

IF YOU PURCHASED OR LEASED YOUR VEHICLE IN CALIFORNIA, YOUR WARRANTY IS MADE SUBJECT TO THE TERMS OF THIS BINDING ARBITRATION PROVISION. BY ACCEPTING BENEFITS UNDER THIS WARRANTY, INCLUDING HAVING ANY REPAIRS PERFORMED UNDER WARRANTY, YOU AGREE TO BE BOUND BY THESE TERMS. IF YOU DO NOT AGREE WITH THESE TERMS, PLEASE CONTACT US AT OPTOUT@HMAUSA.COM WITHIN THIRTY (30) DAYS OF YOUR PURCHASE OR LEASE TO OPT-OUT OF THIS ARBITRATION PROVISION.

(Warranty, Exhibit 3, Ameripour Decl., pg. 14.)

Bluelink Connected Services Agreement

On or about December 12, 2019, [a user] enrolled [the subject] vehicle in Hyundai's Bluelink services. (Rao Decl., ¶ 5.) Hyundai's Bluelink services refers to a connected car system that includes various functions and features. (Id. at ¶ 3.) In order to enroll in Hyundai's Bluelink services, customers must agree to the then-effective Bluelink Connected Services Agreement ("CSA"), the terms and conditions of which also include a binding arbitration provision. (Rao Decl., ¶ 4; Bluelink CSA, Exhibit 2 to Rao Decl.) Indeed, in order to enroll, [a user] had to affirmatively click the box acknowledging that they agree to the Bluelink's terms and conditions. (Rao Decl., ¶ 6.) A customer cannot successfully activate Bluelink services unless they complete the step requiring them to click the box acknowledging they agree to the Bluelink Terms and Conditions. (Id.) The arbitration provision in the CSA provides:

Hyundai and you agree to arbitrate any and all disputes and claims between us arising out of or relating to this Agreement, Connected Services, Connected Services Systems, Service Plans, your Vehicle, use of the sites, or products, services, or programs you purchase, enroll in or seek product/service support for, whether you are a Visitor or Customer, via the sites or through mobile application, except any disputes or claims which under governing law are not subject to arbitration, to the maximum extent permitted by applicable law. This agreement to arbitrate is intended to be broadly interpreted and to make all disputes and claims between us subject to arbitration to the fullest extent permitted by law...The agreement to arbitrate otherwise includes, but is not limited to:

claims based in contract, tort, warranty, statute, fraud, misrepresentation or any other legal theory; claims that arose before this or any prior Agreement (including, but not limited to, claims relating to advertising)...

(Exhibit 2 to Rao Decl., CSA ¶ 15 (C(a).))

Analysis

Defendant has provided this warranty directly to plaintiff in connection with the purchase of the vehicle. The arbitration provision states that **"IF YOU PURCHASED OR LEASED YOUR VEHICLE IN CALIFORNIA, YOUR WARRANTY IS MADE SUBJECT TO THE TERMS OF THIS BINDING ARBITRATION PROVISION. BY ACCEPTING BENEFITS UNDER THIS WARRANTY, INCLUDING HAVING ANY REPAIRS PERFORMED UNDER WARRANTY, YOU AGREE TO BE BOUND BY THESE TERMS."** (Warranty, Exhibit 3, Ameripour Decl., pg. 14.) Additionally, the warranty states: "Hyundai Motor America (HMA) warrants your

new 2020 Hyundai vehicle pursuant to the limited warranties described in this Owner's Handbook.” (Id. at pg. 16.) Given plaintiff has leased the vehicle in California, is bringing this action pursuant to this warranty, and has alleged that repairs have been performed under the warranty, the arbitration provision applies. Therefore, defendant may compel arbitration under the warranty.

Based on the foregoing, the court grants defendant’s motion to compel arbitration. This action shall be stayed in its entirety pending conclusion of the arbitration. **The case management conference set June 22, 2026, is vacated. An order to show cause re: arbitration is set February 19, 2027, at 9:00 a.m. in Department 1.**

14. S-CV-0056703 Casebolt Flynt, Elizabeth v. Whitely, Jesse

The demurrer to the second amended complaint and motion to strike portions of plaintiff’s first amended complaint for damages are continued to June 23, 2026, at 8:30 a.m. in Department 42.

15. S-CV-0056851 Kevie, Richard v. Tiernan, William

Plaintiff is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Possession and Preliminary Injunction

Plaintiff moves for a preliminary injunction enjoining the sale of real property known as 205 Summit Street, Auburn, California 95603.

The court may grant a preliminary injunction when it appears from the complaint plaintiff is entitled to the demanded relief and plaintiff would suffer irreparable injury if the enjoined action were allowed to proceed. (Code Civ. Proc., § 526, subd. (a).) In making this determination, “the court must consider whether the party seeking the injunction is likely to prevail on the merits” and balances the relative harm to the parties. (*Mitsui Manufacturers Bank v. Texas Commerce Bank-Ford Worth* (1984) 159 Cal.App.3d 1051, 1059.) The plaintiff has the burden of showing they would be harmed without a preliminary injunction. (*Casmalia Resources, Ltd. v. County of Santa Barbara* (1987) 195 Cal.App.3d 827, 838.) The more likely it is a party will prevail on the merits, the less severe harm need be shown, particularly where the injunction maintains rather than alters the status quo. (*King v. Meese* (1987) 43 Cal.3d 1217, 1227; *Bennett v. Lew* (1984) 151 Cal.App.3d 1177.) In making its determination, the court may consider a verified complaint or affidavits. (Code Civ. Proc., § 527, subd. (a).)

A preliminary consideration for the court is proper notice to the party to be enjoined. “No preliminary injunction shall be granted without notice to the opposing party.” (Code Civ. Proc., § 527, subd. (a).) Here, a careful review of the court file reveals no evidence this motion has been served on either defendant. The motion for preliminary injunction is therefore denied.